to surrender the protection of the Federal Constitution. *Power Co.* v. *Saunders, supra,* 497. *Hanover Insurance Co.* v. *Harding,* 272 U. S. 494, 507. *Frost* v. *Railroad Commission,* 271 U. S. 583, 593 *et seq. Fidelity & Deposit Co.* v. *Tafoya,* 270 U. S. 426, 434. *Western Union Tel. Co.* v. *Foster,* 247 U. S. 105, 114. *Looney* v. *Crane Co.,* 245 U. S. 178, 188. *Sioux Remedy Co.* v. *Cope,* 235 U. S. 197, 203.

The section declares the imposition to be a tax "upon gross receipts." And the Supreme Court said: "The real subject of the tax is the gross receipts of a company engaged in the transportation of freight or passengers . . ." That statement is not affected by a later expression referring to the tax as a "state tax on business or income" in contrast with a "local tax on property" such as hacks, cabs and other vehicles. The variation of language used by the court evidently is intended to be, and is, without significance. The words of the section are too plain to require explanation. They could not reasonably be given any other meaning. But, in any event, a characterization of the tax by the state court is not binding here. *Louisville Gas & Electric Co.* v. *Coleman, ante,* p. 32. *St. Louis Compress Co.* v. *Arkansas,* 260 U. S. 346, 348. There is no controversy as to the application of the tax. Plaintiff in error assumes that the section covers its gross receipts, as held by the state court, but insists that the section is invalid because it does not extend to like receipts of natural persons and partnerships. No doubt there are situations in which, as appears in *Cudahy Packing Co.* v. *Minnesota,* 246 U. S. 450, and other cases, a percentage of gross earnings may be taken as a tax on property used in the business and properly may be deemed not to be a tax or burden on such earnings. But the practical operation of the section is to be regarded, and it is to be dealt with according to its effect. *Frick* v. *Pennsylvania,* 268 U. S. 473. *Panhandle Oil Co.* v. *Mississippi,*